

Amendment No. 1 to HB1534

Terry
Signature of Sponsor

AMEND Senate Bill No. 1565*

House Bill No. 1534

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) Subject to appropriation by the general assembly, the department of health may create a program to award grants to women whose pregnancies have ended in stillbirth. Any funds received for the grant program must be deposited into a special account in the state treasury to be known as the stillbirth assistance fund, hereinafter known as the "fund."

(b) The grant program, if established, and grants approved under the program must be administered by the department and distributed from the fund. Moneys in the fund may also be used for the department's reasonable expenses in administering the program.

(c) The department may develop procedures for eligible women to submit a grant application and criteria for allocating available funds.

(d) Moneys in the fund must be expended for the following purposes:

(1) To offset a woman's costs of burial or other disposition of the woman's stillborn child's remains; and

(2) To provide educational resources, including grief support materials, informational resources related to stillbirth, and referrals to available assistance programs, for women who have experienced a pregnancy that ended in stillbirth.

(e) Moneys in the fund must be invested by the state treasurer in accordance with § 9-4-603. Notwithstanding another law to the contrary, interest accruing on investments and deposits of the fund must be credited to the fund, and remain part of the fund. Any unencumbered moneys and any unexpended balance of the fund remaining at the end of a fiscal year must not revert to the state general fund or another agency fund or account, but must be carried forward until expended in accordance with this section.

(f) If such a grant program is created, then the department shall report to the chair of the health and welfare committee of the senate and the chair of the committee of the house of representatives having jurisdiction over health matters, no later than February 1, 2027, and each February 1 thereafter, regarding the department's administration of the fund. The report must include the obligated and unobligated balances of the fund as of June 30 of the reporting calendar year and the grants awarded from the fund in the immediately preceding fiscal year. Grant information must include the amount of the grant awarded and the purpose for which the grant was used.

(g) The department may adopt rules necessary for the administration of the grant program. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.